

# HOUSE . . . . . No. 1170

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Colleen M. Garry*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to access to care for Ehler Danlos syndrome patients.

PETITION OF:

| NAME:                   | DISTRICT/ADDRESS:     | DATE ADDED:      |
|-------------------------|-----------------------|------------------|
| <i>Colleen M. Garry</i> | <i>36th Middlesex</i> | <i>1/17/2025</i> |

# HOUSE . . . . . No. 1170

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By Representative Garry of Dracut, a petition (accompanied by bill, House, No. 1170) of Colleen M. Garry relative to providing coverage for physical therapy preventative, ongoing chronic maintenance, and acute treatment for Ehlers-Danlos syndrome patients. Financial Services.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 1022 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to access to care for Ehler Danlos syndrome patients.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting after  
2           section 17O, as inserted by chapter 233 of the acts 2016, the following section:-

3           Section 17P. Any coverage offered by the commission to an active or retired employee of  
4           the commonwealth insured under the group insurance commission that provides coverage for  
5           cancer chemotherapy treatment shall provide coverage for physical therapy preventative,  
6           ongoing chronic maintenance, and acute treatment for Ehler Danlos Syndrome patients.

7           SECTION 2. Chapter 175 of the General Laws is hereby amended by inserting after  
8           section 47II, as inserted by chapter 233 of the acts 2016, the following section:-

9           Section 47JJ. Any policy, contract, agreement, plan or certificate of insurance issued,  
10 delivered or renewed within the commonwealth that provides medical expense coverage shall  
11 provide for preventative, ongoing chronic maintenance and acute treatment physical therapy for  
12 Ehler Danlos Syndrome patients when determined to be medically necessary and ordered by a  
13 physician after making a thorough evaluation of the patient's symptoms, diagnostic test results or  
14 response to therapy. Therapy otherwise eligible for benefits pursuant to this section shall not be  
15 denied solely because such therapy may be characterized as unproven, experimental, or  
16 investigational in nature.

17           SECTION 3. Chapter 176A of the General Laws is hereby amended by inserting after  
18 section 8KK, as inserted by chapter 233 of the acts 2016, the following section:-

19           Section 8LL. Any contract between a subscriber and the corporation under an individual  
20 or group hospital service plan which is delivered, issued or renewed within the commonwealth  
21 shall provide coverage for preventative, ongoing chronic maintenance and acute treatment  
22 physical therapy for Ehler Danlos Syndrome patients when determined to be medically necessary  
23 and ordered by a physician after making a thorough evaluation of the patient's symptoms,  
24 diagnostic test results or response to therapy. Therapy otherwise eligible for benefits pursuant to  
25 this section shall not be denied solely because such therapy may be characterized as unproven,  
26 experimental, or investigational in nature.

27           SECTION 4. Chapter 176B of the General Laws is hereby amended by inserting after  
28 section 4KK, as inserted by chapter 233 of the acts 2016, the following section:-

29           Section 4LL. Any subscription certificate under an individual or group medical service  
30 agreement delivered, issued, or renewed within the Commonwealth shall provide coverage for

31 preventative, ongoing chronic maintenance and acute treatment physical therapy for Ehler  
32 Danlos Syndrome patients when determined to be medically necessary and ordered by a  
33 physician after making a thorough evaluation of the patient's symptoms, diagnostic test results  
34 and response in therapy. Therapy otherwise eligible for benefits pursuant to this section shall not  
35 be denied solely because such therapy may be characterized as unproven, experimental, or  
36 investigational in nature.

37 SECTION 5. Chapter 176G of the General Laws is hereby amended by inserting after  
38 section 4CC, as inserted by chapter 233 of the acts 2016, the following section:-

39 Section 4DD. Any individual or group health maintenance contract shall provide  
40 coverage for preventative, ongoing chronic maintenance and acute treatment physical therapy for  
41 Ehler Danlos Syndrome patients when determined to be medically necessary and ordered by a  
42 physician after making a thorough evaluation of the patient's symptoms, diagnostic test results  
43 and response in therapy. Therapy otherwise eligible for benefits pursuant to this section shall not  
44 be denied solely because such therapy may be characterized as unproven, experimental, or  
45 investigational in nature.